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Athens, 9-1-2025
Protocol No.: 119

DECISION 1/2025

The Hellenic Data Protection Authority convened, at the invitation of its President, in a meeting via teleconference on 30-07-2024, in order to examine the case referred to in the background of this document. Present at the meeting were the President of the Authority, Konstantinos Menoudakos, the regular members Charalampos Anthopoulos, Spyridon Vlachopoulos, Christos Kalloniatis, Konstantinos Lamprinoudakis, the alternate member Nikolaos Faldamis in place of the regular member Aikaterini Iliadou, who, although duly summoned in writing, did not attend due to an impediment, and the regular member Grigorios Tsolias as rapporteur. Present, without voting rights, were Charis Simeonidou, special scientist – auditor, as assistant rapporteur and Irini Papageorgopoulou, employee of the administrative affairs department of the Authority, as secretary. The Authority took into account the following:

The Authority has received a significant number of complaints against the National Bank concerning the violation of the right of access of data subjects under Article 15 of the GDPR, due to non-fulfillment or significant delays in fulfilling this right. Specifically, the following complaints have been submitted to the Authority since the beginning of 2022, from the examination of which the issues listed below have arisen:

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1. Complaint A (G/EIS/183/11-01-2022)

Following an incident of electronic fraud, which resulted, on 31/08/2021, in an unknown perpetrator modifying the transactional profile information of complainant A in his electronic account (i-bank) at the National Bank, and subsequently transferring an amount of ... € from the complainant's bank account to third parties, the complainant on 08/09/2021 submitted a request at branch R of the National Bank, requesting, among other things, copies of the recorded telephone conversations from 03/09/2021 with the Bank's call center. Additionally, on 20/09/2021, the complainant requested via email a copy of his application-contract for the use of electronic banking services as well as a copy of all account activity in his i-bank account for the period from 20/08/2021 to 08/09/2021, and subsequently, on 24/10/2021, with a new email, the complainant requested the Bank to provide him with all available information regarding the recorded transactions and connections through his i-bank account, as well as copies of the telephone conversations from 22/10/2021 with a representative of the Bank, while in the same message he requested that his personal data be corrected as reflected in his "Financial Transaction Profile," according to the data that was included in it before 31/08/2021. According to the complaint, the Bank provided the complainant with a copy of his contract on 3/11/2021, only after the complainant filed a lawsuit for this reason. In the context of investigating this complaint, the Authority communicated it to the complained bank on 14/4/2022, requesting it to express its views within 15 days. In its response G/EIS/7313/24-05-2022, the National Bank stated that the complainant's request for the provision of the recorded telephone conversations was ultimately satisfied on 19/4/2022, citing as a reason for the delay that "by mistake, this specific request was not initially forwarded to the competent Department of the Bank, and on the other hand, that the creation of the said CD is a task that requires access by appropriately authorized personnel to specific infrastructures of the Bank, access that was not feasible daily due to teleworking arrangements." Therefore, the above request for access

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was satisfied 7 months after its submission and following the filing of a lawsuit by the subject and the submission of a complaint to the Authority. With his document G/EIS/11379/28-10-2022, the complainant notified the Authority of the decision no. ... of the Single-Member Court of First Instance of R, which accepted his lawsuit against the National Bank for the award of compensation, among

other things, for the violation of his right to access his personal data (Article 15, paragraph 3 GDPR), as alleged, and he was awarded for this reason the amount of one thousand (1,000 €) euros for the restoration of his moral damage. Subsequently, the complainant, with his supplementary document G/EIS/11967/22-11-2022, clarified that he stands by his complaint, as he states: "the bank not only did not satisfy my right to access my conversations, but it invoked my conversations and made use of their content to counter my lawsuit against it, referring to them fragmentarily, while at the same time not granting me access to them, a fact from which it appears, in my opinion, that the violation of my right to access my conversations was not due to workload, lack of staff, and generally some negligent behavior, but occurred in light of our dispute regarding the violation of my i-bank and the loss of all the money I had deposited in the bank, improperly exploiting the advantageous position of the bank as the data controller, to my detriment. Moreover, the fact that the decision no. ... of the M.P. R was issued, which vindicates me in the first instance, does not constitute a reason for me to withdraw my relevant report; moreover, the bank has already appealed against the aforementioned judicial decision, which is scheduled to be discussed in December 2023. It should be noted that at the time I was requesting access to my conversations, I was in a hurry, as I had lost all the money I had deposited in the bank and urgently needed to exercise my legal rights; ultimately, I exercised my rights in the best way I could, without, however, having access to my conversations, and at the time the bank claims it satisfied my right, namely on 19.04.2022, the deadline for filing even an amendment to the lawsuit I had filed had already passed, thus I had already suffered irreparable damage, while it is evident that any attempt at restoration was made following the notification of the Authority for the Protection of Personal Data to the Bank on 14.04.2022 with reference number 910 regarding my complaint." In the same document, the complainant argues that his request dated 24/10/2021 for access to his connections and transactions in i-bank and the detailed transaction account for August and September 2021 (request number ...) was not satisfied.

2. Complaint B (G/EIS/8265/24-06-2022)

Following an incident of fraud against the complainant, B, on 15/02/2022, which resulted in the unlawful withdrawal of a monetary amount (totaling ... euros) from her account, as soon as the complainant realized the fraud and while the transfer was in progress, she repeatedly contacted the call center of the National Bank, notifying them of the fact and requesting measures to prevent the fraud and to block the funds, while in each call she was informed that the conversation was being recorded. Subsequently, and in light of exercising her rights, on 16/02/2022, the complainant formally requested a copy of the aforementioned conversations, and later communicated to the Bank the extrajudicial statement, invitation, and protest dated 21/03/2022, in which, among other things, she again requested to be provided with "an electronic storage medium of the transcribed conversations she had with the staff from her personal phone ... and her husband's phone ..., [...] with the call center and the relevant services of the Bank at your contact numbers 210 4848484 and 210 7727440, on the day 15.02.2022 and from 13:58 p.m. to 19:20 p.m." In the response letter dated 20/04/2022 from the National Bank, the complainant was informed, among other things, that the request for the provision of recorded conversations was under processing. The Authority notified the Bank of the above complaint with document G/EXE/2336/22-09-2022, requesting its views on the allegations. According to the response document G/EIS/11135/29-10-2022 from the Bank, the complainant's requests for the provision of the recorded conversations were satisfied with the sending of a relevant copy (CD) to the branch S that serves the complainant, via internal correspondence on 14/6/2022, and the complainant, after being informed...

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In this regard, the CD was received in writing on 5/7/2022 (i.e., 4.5 months after the submission of the request). The reason for the delay, according to the National Bank, is that "it was not possible to provide the copy of the conversations sooner, on the one hand due to the large number of related requests received by the Bank, and on the other hand because the creation of the said CD is a task that requires access by appropriately authorized personnel to specific infrastructures of the Bank, which access was not feasible on a daily basis due to teleworking arrangements." With the supplementary document G/EIS/12066/25-11-2022, the complainant states that she insists on her

complaint and does not accept that her request has been satisfied, as she states "the bank did not comply with the legally prescribed deadlines for providing me with the transcribed conversations, which caused me material and moral damage, anger, and disappointment, given that this delayed the exercise of my claims for the restoration of my damages due to the illegal charges on my bank accounts with unauthorized transactions."

3. Complaint C (G/EIS/10200/18-09-2022)

Following the rejection of a request to dispute a transaction that had been made with his card in February 2022 and after the submission of related complaints, the complainant submitted electronically via email on 9/7/2022 a request for access to information regarding the actions of the Bank, including any correspondence it had with the Business concerning the transaction. According to the supplementary document G/EIS/10409/25-09-2022 from the complainant, his request was satisfied on 23/09/2022, after a lapse of 74 days. The Authority, with its document G/EXE/3298/15-12-2022, requested the Bank's views on the reported incidents and in particular, the reasons why it did not respond to the complainant's request within the deadline stipulated in Article 12, paragraph 3 of the GDPR and did not inform him accordingly, as provided in Article 12, paragraph 4 of the GDPR. In its document G/EIS/12869/29-12-2022, the Bank claimed that, "given the communications that had taken place with the client and that the clarifying questions he raised in his request dated 9/7/2022 concerned the same issue, the relevant case was considered a consequence of the above correspondence and the related request was recorded as a complaint," following the dispute request, while after searching and communicating with him by phone, it ultimately sent him the requested information on 23/9/2022, including the correspondence with the business. Regarding the reason for the delay, the Bank stated that the additional time required to provide the requested information was due solely to the extensive investigation that was necessary, as more than 3 months had passed since the initial request to dispute the transaction.

4. Complaint D (G/EIS/10409/25-09-2022)

In the context of investigating an incident of electronic fraud that occurred on 17/7/2020 with the complainant D as the victim, the latter submitted on 18/3/2021, as the data subject, the request dated 16/3/2021 for access to the recorded calls he made with the Bank from 16/07/2020 until the date of the request, as well as for any recipients of his data. As evidenced by the emails attached to the complaint between the complainant's attorney and the relevant employee of the National Bank, the above request was submitted at branch T on 18/3/2021 and was forwarded to the relevant services of the Bank the following day, on 19/3/2021. According to the complaint, the said request was partially satisfied on 10/8/2021, namely with the provision of the recorded call of the complainant, while no information was provided regarding the reason for the delay, and the requested detailed information regarding the recipients of his data was also not provided to the complainant. The Authority, with its document G/EXE/3299/15-12-2022, communicated this complaint to the Bank requesting its views. In its response G/EIS/484/23-01-2023, the Bank stated that the request of complainant D was submitted on 7/5/2021 via Branch T to which the request for access dated 16/3/2021 was attached, and that the Bank responded to this request with its letter dated 10/8/2021, which is also attached to the complaint. As for

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Regarding the complainant's question concerning the possible disclosure of their data by the Bank to third parties, the respondent states that they informed him "that in the context of executing the disputed transfer, only the necessary data for the execution of the transfer was processed." Finally, it is noted that the customer was provided with a copy of the recorded conversations through their cooperating Branch, and from the attached document no. 6, it appears that the CD was received on 9/9/2021, that is, 5 months after the request was submitted. According to the Bank's response, the additional time required to provide the requested information was mainly due to the fact that "the creation of a copy of the recorded conversations is a task that requires access by appropriately authorized personnel to specific infrastructures of the Bank, which access was not feasible on a daily basis due to the particular conditions prevailing during the pandemic period."

5. Complaint E (G/EIS/591/25-01-2023)

Following an incident of fraud against the complainant (phishing), the complainant submitted a request for a copy of the recorded telephone conversations with the Bank via an extrajudicial statement on 16/11/2022. As indicated in the document no. G/EIS/4133/01-6-2023 from the respondent Bank, the aforementioned request was ultimately satisfied with the dispatch of the CD to the complainant's service branch on 23/2/2023 and its delivery to the complainant on 9/3/2023. Regarding the issue of the delay in satisfying the right, the Bank states the following: "Specifically concerning the time required to provide the requested information regarding the issuance of copies of the recorded conversations, we must emphasize that this is due to the extensive investigation required, as well as the fact that the creation of a copy of the recorded conversations is a task that requires access by appropriately authorized personnel to specific infrastructures of the Bank, which access is not feasible on a daily basis due to the teleworking arrangements in place for the Bank's staff." In the supplementary document G/EIS/3123/28-4-2023, the complainant's attorney states that the right was satisfied late, almost two months after the complaint and nearly four months from the proven submission of the request, and therefore, regardless of the satisfaction of the right, the examination of the case is required concerning the exceeding of the deadline provided by the GDPR.

6. Complaint Z (G/EIS/603/25-01-2023)

Following an incident of fraudulent transactions of which the complainant was a victim and after the submission of two extrajudicial statements to the National Bank on 6/10/2022 and 17/10/2022 respectively, the complainant submitted a request for access in accordance with Article 15 of the GDPR for a series of her personal data related to the execution of the said fraudulent transactions via email to the address dpo@nbg.gr on 7/11/2022. According to the complaint, the Bank did not respond to this request, while the complainant received updates via email that her request was being processed (on 8/11/2022, 8/11/2022, 22/11/2022, 7/12/2022, and 8/12/2022). Following the notification of the complaint to the Bank with the document G/EXE/1057/27-04-2023 from the Authority, in its document G/EIS/4173/02-06-2023, the Bank, in response to this document from the Authority, claims that the complainant received the recorded conversations on 19/1/2023 (without providing relevant documentation) and that on 25/1/2023, the complainant was sent information regarding the transactions made on her account. In the letter in question, which the Bank attaches as "Annex 5," it is stated: "Furthermore, with this letter, we inform you that regarding the copy of the recorded telephone conversations with the Bank, you will be informed by phone from your cooperating branch Y as soon as the processing of your request is completed, in order to come for its collection." The Bank also states that "the client, after some communications with the Consumer Ombudsman containing similar content to the above, received on 9/5/2023 an email (Annex 6) from the Contact Center."

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of the Bank regarding the resending of a copy of its conversations, while on 30/05/2023, it received a supplementary email from the bank (Annex 7), through which the connection details were sent as attachments...". However, as emerges from the submitted documents, the complainant was first informed on 9/5/2023 via e-mail that "the conversations that were identified will be provided to Branch Y" (although in its response to the Authority, the Bank refers to "resending a copy of the conversations") and on 30/5/2023, the requested connection information for her internet banking account and some additional clarifications were sent to her. Therefore, the complainant's right of access to her recorded conversations was satisfied in May 2023, 6 months after its submission, after the above complaint was communicated to the Bank by the Authority (27/4/2023) and after the Consumer Advocate also intervened.

7. Complaint Z (G/EIS/746/31-01-2023)

Following an incident of fraudulent transaction, of which she was a victim, complainant Z submitted a request on 13/12/2022 by phone to the National Bank for copies of the recorded telephone conversations she had with the Bank's customer service on 3/12/2022 and 7/12/2022. Subsequently, according to the complaint, the complainant resubmitted her request in writing on 20/12/2022, via the Bank's electronic platform, additionally requesting the detailed transaction information of her account

for the period from 29/11/2022 to 12/12/2022, details of the IP that was used, as well as a copy of the certification document that was uploaded to her account on 1/12/2022. By the time of the complaint, the Bank had not responded to this request, while in her related inquiry dated 18/1/2023 via the platform, the complainant received the response that her request was under processing. As emerged from the examination of the case (see G/EIS/4174/2-6-2023 document of the Bank's opinions and G/EIS/8232/20-11-2023 supplementary document of the complainant), the Bank had sent its response on 24/1/2022 to the e-mail address of the unknown perpetrator (...), who had changed the address through the settings of the complainant's e-banking, and of which the complainant had informed the Bank by phone on 3/12/2022. The recorded telephone conversations were sent on 1/2/2023 to Branch F and were received in writing by the complainant on 10/2/2023, that is, 3 months after the submission of the request, while for the other requested information, the complainant received an email message, at her correct email address, on 10/3/2023 (4 months after the submission of the request). The Bank, in its document, argues that "it kept the customer fully informed about the progress of her case and responded to every request she made for the provision of information concerning her." However, the complainant states that even then, the National Bank intentionally failed, as she claims, to provide her with the conversation she had with a representative from its card department on December 3, 2022, for which she submitted a new request for access – provision of a copy on 15/11/2023 with no. In her supplementary document G/EIS/1538/26-02-2024, the complainant argues that, following updates that her request was under investigation, on 22/12/2023 she was informed that the conversations were located and would be sent on a CD to Branch F and finally, after many delays, she received it on 25/01/2024, but this time the CD contained only one conversation that she had already received in February 2023, and the content of which the complainant had invoked in order to explain to the authority that she was requesting the immediately following one, which ultimately was not provided to her. Therefore, the complainant argues that her request has remained unfulfilled to this day, despite any contrary claims that the Bank may assert. With document G/EXE/590/16-02-2023, the Authority communicated the above supplementary document of the complainant to the National Bank in order to receive its views on this matter. Subsequently, the National Bank, with its supplementary document G/EIS/1940/05-03-2024, stated regarding the complainant's request no. ... the following: "The Bank searched for the specific conversation by searching all the phones related to the customer, conducting a thorough check of incoming calls from both her mobile phone and the mobile phones of her husband and her lawyer; however, it was not possible to...

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No further communication with the client was found on that specific day, apart from the two conversations that had already been provided to her. It is noted that at the end of the 2nd call (03.12.2022), the representative of the Bank informed Z that she would forward the call to the card department; however, no further conversation was found in the Bank's records, indicating that the attempt to connect may not have been successful. Therefore, on 22.01.2024, a new CD was sent to Branch F, which again contained the call made on 03.12.2022 with the Bank's Contact Center. According to the attached proof of receipt, Z received the new CD on 26.01.2024. From the above, it appears that although the requested call was not located, the complained Bank did not inform the complainant accordingly. Instead, it re-recorded the already provided conversation onto another CD, which was delivered to her without informing her that the CD did not contain the requested personal data.

During the same period, the complaint G/EIS/7926/11-06-2022 was also submitted by H against the National Bank for violation of the right of access, which was archived (G/EXE/3284/14-12-2022) as without object, due to the satisfaction of the right before the intervention of the Authority. As emerged from the examination of this complaint, the request for the provision of recorded telephone conversations was submitted on 5/5/2022 and was satisfied on 19/7/2022 (2.5 months later), as the Bank claimed, "the investigation of similar fraud incidents is time-consuming, as it requires thorough research in the Bank's records and systems, cooperation of all involved parties, evaluation of the factual circumstances, and decision-making regarding the potential compensation of the client, while a similar in-depth investigation was also required in the case of the complainant."

Finally, it is noted that in the context of another case (Complaint G/EIS/6381/04-10-2021), the Bank received the document G/EXE/306/07-02-2023 from the Authority, which highlighted the following: "from the investigation of the complaint, it emerged that the exercised right of access of the complainant to her personal data, submitted on 9/2/2021 and 20/3/2021, was satisfied with a delay of several months, specifically partially in July and partially in September 2021. In your response document dated 16-12-2022 to the Authority (above under 3 related), you clarified that the delay in satisfying the complainant's right was due to the fact that her request was submitted at the beginning of 2021, when the Bank was operating under strict health protocols due to measures to combat the Covid-19 pandemic, resulting in difficulties in performing tasks such as extracting voice recordings from the Bank's systems, which required the physical presence of authorized personnel in special secure storage areas, while by oversight, the two CDs initially provided to the complainant did not include her conversations with the Fraud Prevention Sector, an omission that was discovered after the sending of her extrajudicial statement dated 22/6/2021. We remind you of the obligation of the Data Controller, on the one hand, to ensure access to personal data of data subjects without undue delay in the context of exercising their rights under Article 15 of the GDPR, and on the other hand, to comply with the obligation arising from paragraph 3 of Article 12 of the GDPR, according to which, "the data controller provides the data subject with information on the action taken in response to a request under Articles 15 to 22 without delay and in any case within one month of receiving the request." From the factual circumstances and the submitted relevant documents, it appears that you did not respond, as mentioned above, to the complainant within the deadline provided in Article 12 paragraph 3 of the GDPR. Therefore, taking into account the above clarifications provided, we draw your attention to the fact that you must process and satisfy the relevant requests of data subjects within the deadlines provided in Article 12 paragraph 3 of the GDPR, ensuring the implementation of appropriate organizational and technical measures and reviewing these measures where necessary." Given that the above complaint has already been examined by the Authority, it is not re-examined in the context of the present case; however, the factual circumstances...

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The incidents identified during its examination are taken into account for the overall operation of the Bank in relation to its response to requests for access and information and the adoption of technical and organizational measures on its part.

Following the above, given that the aforementioned complaints indicate the inadequate implementation by the National Bank of the provisions of the GDPR concerning the satisfaction of the right of access, the Authority sent the Bank document Γ/ΕΞΕ/294/06-02-2023, with the aim of investigating ex officio the procedures maintained by it and examining the possible need to exercise corrective powers, in accordance with Article 58, paragraph 2 of the GDPR. With this document, the Bank was requested to clarify whether it has a written Policy or Procedure for Managing Data Subjects' Access Rights under the GDPR, and in the event of a positive response, the Bank was called to provide the Authority with this Policy as well as the relevant Guidelines given to its staff. Additionally, the Bank was asked to clarify whether, in its opinion, in the cases of the aforementioned complaints (numbers 1-4 and in the case of complaint Γ/ΕΙΣ/7926/11-06-2022 which was archived) this Policy and the relevant guidelines for employees were adhered to, and b) whether, following the complaints, it has taken any action to review the procedures or update the relevant guidelines. Since it had not received any response to the above document, the Authority sent its reminder document Γ/ΕΞΕ/2774/02-11-2023 to the Bank, in which it again requested the above information regarding the newer (numbers 5-7) complaints that had been submitted to the Authority in the meantime. The National Bank responded to the above documents with its response number Γ/ΕΙΣ/543/23-01-2024, in which it supports the following, while providing and invoking the attached documents mentioned below:

- Since May 2018, the Bank has adopted the Personal Data Management Policy of the Bank and the Group (Annex 1) and has also issued the service circular series B' 85/24.05.2018 on the subject "Commencement of the implementation of the new framework regarding the protection of Natural Persons against the processing of personal data (General Data Protection Regulation – GDPR)", with

which it informed the staff about the implementation of the GDPR and provided guidance on the Bank's compliance with the regulatory framework (Annex 2).

- At the same time, an internal Procedure has been established by the competent Unit regarding the Management of Customer GDPR Requests (Annex 3), which describes in detail the actions of the Bank in the context of processing data subjects' requests to exercise their rights, in accordance with the provisions of the GDPR. Additionally, it has designed a mandatory training seminar titled "Protection of the Individual from the Processing of Personal Data," aimed at presenting the regulatory framework, familiarizing the staff with it, and informing them about developments, as well as the seminar "GDPR – From Regulation to Practice," which aimed at understanding the rights of data subjects arising from the GDPR. The Bank notes that the above texts and seminars are dynamic and are updated or supplemented appropriately, without, however, specifying when the above seminars were designed or clarifying whether they have already been conducted and to what extent of the staff.

- Regarding the management of the cases mentioned in the Authority's document Γ/ΕΞΕ/2774/02-11-2023, the Bank initially states that the relevant cases concerned customers who had fallen victim to electronic fraud, that their requests mainly concerned the dispute of fraudulent transactions and the cancellation of remittances, while additionally the customers requested further information, such as, for example, information about the identity of the persons to whom their money ended up or a copy of previous recorded conversations with the Bank. For this reason, these customers approached either their cooperating Branch or the Bank's call center, and the relevant cases were forwarded for investigation to the Units that handle actions related to transaction disputes.

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The client addressed the mailbox dpo@nbg.gr, after having previously submitted a request disputing transactions that had been responded to, as well as two extrajudicial complaints. The Bank asserts that it has made every possible effort to respond promptly to customer requests; however, it should be noted that in recent years there has been a significant increase in incidents of electronic fraud, which has led to an exponential rise in related requests, and that the investigation of such cases requires a considerable amount of time, as it necessitates the cooperation of multiple Units within the Bank, and usually also communication with third-party Banks during the handling of transaction dispute requests. The Bank emphasizes that during the relevant investigation, it often communicates with customers to inform them about the progress of its actions or to request additional information and clarifications. It also notes that the provision of copies of recorded conversations requires access by appropriately authorized personnel to specific infrastructures, access that is not feasible on a daily basis due to the teleworking arrangements in place for the Bank's staff.

- Finally, the Bank emphasizes that instructions have been given to staff for the faster processing of related requests, continuous communication with customers during the investigation, and detailed updates regarding the reasons why a request cannot be processed within a month, in cases where it is determined that further investigation is required. It also states that it is currently undertaking the project of comprehensive documentation of the Bank's processes in a standardized format, which provides detailed and clear information regarding the procedures that must be applied by the individual Units of the Bank, including the procedure "Management of GDPR Rights Exercise Requests," which describes in detail all the steps that are applied in the case of a GDPR rights exercise request and which the Bank submits as Annex 4.

Following the above, the Authority, with its G/EXE/762/04-03-2024 summons, called the National Bank to a hearing before the Plenary of the Authority on

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March 19, 2024, in order to present its views on the case. During the session on March 19, 2024, the Bank submitted a request for postponement, which was accepted, and the case was postponed to the session on March 26, 2024. During the session on March 26, 2024, the following representatives of the National Bank were present: Th and I, Directors of Compliance for Business Regulation and Customer Behavior, K, Head of Customer Behavior Sector, L, Head of Regulatory Compliance and Quality

Assurance Sector, M, Head of the Compliance Sub-Directorate for Payments and Digital Services. Additionally, N, Data Protection Officer (DPO) of the National Bank, and X, Deputy DPO, were present to provide clarifications. The Bank's representatives presented their claims regarding the above cases and answered related questions from the President and members of the Authority. At the end of the session, the National Bank was given a deadline and subsequently submitted the G/EIS/3486/15-04-2024 memorandum on time.

Both orally during the session and subsequently with its memorandum, the Bank asserted the following:

Regarding the Authority's document no. G/EXE/294/06-02-2023, which had been sent to the address contact.center@nbg.gr, it stated that it did not reach the Bank because the said address has not been monitored since June 8, 2022, and the Bank's failure to respond to it is not due to negligence or indifference. Concerning the Policies and Procedures followed, the Bank submits as Annex 2 the Personal Data Management Policy, which has been adopted since May 2018 and updated in May 2022. The text of the Policy refers to the principles of the GDPR and the related obligations of the Bank as the Data Controller. On behalf of the Bank, the role of the DPO in monitoring compliance and highlighting relevant issues is emphasized, and the allocation of related responsibilities among the Bank's organizational units is analyzed. Furthermore, the Bank states that it has issued the internal circular B' 85/24.05.2018 regarding the "Commencement of the implementation of the new framework concerning the protection of Natural Persons against the processing of personal data (General Data Protection Regulation – GDPR)," which it submits as Annex.

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3, with which it informed its staff about the implementation of the GDPR and provided guidance regarding the Bank's compliance, including instructions for managing customer requests to exercise their rights under the GDPR, and their registration in the Bank's systems. Furthermore, the Bank states that in December 2023, the procedure "Management of GDPR Rights Exercise Requests" (Annex 4) was developed, which details the steps followed after a relevant request is submitted by a Customer: according to this procedure, the relevant requests are forwarded to the Bank's DPO Office and processed by this Office in collaboration with the competent Units as applicable. By way of exception and for reasons of immediacy, the rights to rectify personal data and to object to the sending of promotional material, when exercised at a Branch, are completed and responded to by the same. Regarding access requests, the Bank states that for certain requests that present common characteristics, such as, for example, providing detailed account transactions and copies of recorded conversations, it has already provided since the commencement of the GDPR implementation guiding instructions to the competent Units receiving the requests for their immediate resolution and completion. Indicative responses are submitted as Annex 5-A and the act of appointing the DPO and Deputy DPO as 5-B. Additionally, the Bank states that it has designed the mandatory training seminar "Protection of the Individual from the Processing of Personal Data," which is aimed at its staff, with specific modules addressing issues related to the exercise of rights of data subjects, providing indicative screens as Annex 6. It is noted that the relevant document states the date of update as 13/12/2022.

Regarding the individual complaints, the National Bank first notes that most of the examined cases concern instances of customers who have fallen victim to electronic fraud and their requests mainly involved disputing fraudulent transactions and canceling remittances, while additionally, customers requested further information, such as copies of their recorded conversations with the Bank. As the Bank's representatives stated during the hearing, there has been a surge in electronic fraud cases in recent years, which has led to a rapid increase in the corresponding requests. According to the Bank, every possible effort was made to serve its customers, seeking to exhaust every avenue for their restoration; however, the proper and thorough investigation of these incidents often proves to be time-consuming, as it requires an in-depth review of the Bank's records and systems, collaboration among all involved parties, assessment of the actual incidents, and communication with other involved entities (e.g., beneficiary bank, etc.). Regarding the specific cases, the Bank additionally noted the following (listed in the order of submission of the complaints, as above):

1. A: The Bank reiterates the facts of the case, noting that the request for a copy of the complainant's telephone conversations with the Bank was submitted through its cooperating Branch on 8/9/2021 and that the relevant copy was available at the cooperating Branch on 19/4/2022, a fact for which the customer was informed by phone and subsequently in writing with the Bank's letter dated 3/6/2022. It also states that the email from the complainant dated 24/10/2021 requesting further clarifications was responded to with the Bank's letter dated 3/6/2022. Concurrently, in its memorandum, the National Bank submits the Proposals submitted by both parties in the context of the complainant's lawsuit before the Single-Member Court of First Instance R as requested by the Authority during the hearing (Annex 10-C and 10-D). It is noted that on pages 6 and 7 of the Bank's Proposals dated 20/1/2022, there is a reference to the content of the telephone conversation dated 3/9/2021 between the complainant and representatives of the Bank, while correspondingly on page 8 of the complainant's Proposals dated 3/2/2022, it is stated that "the opposing party has never responded to our requests for copies of the conversations...". In its memorandum, the National Bank

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does not respond to the complainant's assertion that in this way he found himself in a more disadvantageous evidentiary position and suffered procedural harm.

2. B: The Bank reiterates the factual circumstances of the case by submitting its response dated 20/4/2022 to the complainant and the letter dated 14/6/2022 granting the requested recorded conversations, which were initially requested on 16/2/2022 through a Branch, on 2/3/2022 in writing, and on 20/3/2022 through extrajudicial means.

3. C: The Bank submits three letters addressed to the complainant concerning his transaction dispute request and the related complaints that were subsequently filed and preceded the request for access (Exhibits 8-A, 8-B, and 8-C), while regarding the request under consideration submitted on 11/7/2022, it states that after searching for information and communicating by phone with the client, it sent the requested information on 23/9/2022 (Exhibit 8-D).

4. D: The Bank reiterates the factual circumstances by submitting the relevant requests of the complainant, from which it appears that his request dated 7/5/2021 was satisfied with the provision of the copy requested on 9/9/2021.

5. E: The Bank reiterates the factual circumstances by submitting its response letter dated 20/2/2023 to the complainant, informing him that his request dated 16/11/2022 is under processing and states that the request was satisfied with the provision of the copy requested on 9/3/2023.

6. F: The Bank reiterates the factual circumstances of the case, submitting the informative letters that the Bank sent, following the request dated 3/10/2022 and the extrajudicial statements of the complainant dated 5/10/2022 and 17/10/2022, informing her that her case is under processing, the proof of receipt dated 19/1/2023 of the recorded conversations of the complainant (Exhibit 13-C), as well as the final message dated 30/5/2023 with which the requested information was sent to her.

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7. G: The Bank reiterates the factual circumstances of the case, resubmitting the responses it provided to the complainant. It is noted that the responses submitted as Exhibits 11-B (dated 24/12/2022) and 11-D (dated 24/01/2023) were sent via e-mail to the address of the unknown perpetrator (...), who had made the relevant change through the e-banking settings of the complainant. The Bank did not provide any explanation regarding the absence of informing the complainant about the fact that a specific requested call (dated 3/12/2022) had not been located.

The Bank emphasizes that in the above cases, the customers chose to address either their cooperating Branch or its call center, having as their primary concern the dispute of transactions. In this context, the relevant cases were forwarded for investigation and further handling to the Bank's Units that deal with related actions (investigation of factual circumstances in cooperation with other Units of the Bank, communication with third Banks, etc.). Only one customer addressed the mailbox dpo@nbg.gr, after having previously submitted a transaction dispute request which had been responded to, as well as two (2) extrajudicial complaints. Subsequently, due to the dissatisfaction with the transaction dispute request, the customers requested the provision of copies of their telephone

communications or other information from the Bank. As the National Bank claims, it made every possible effort to respond promptly to the customers' requests, which it states was largely achieved, as in three of the above cases the maximum prescribed time frame was adhered to, while in three there was a slight time deviation (approximately 10 days). Regarding the additional time required for the provision of the information requested in the above cases, the Bank argues that it is mainly due to:

- the volume of related requests which have seen a rapid increase due to the surge in electronic fraud.

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- in the extensive investigation required for the examination of the relevant incidents
- in the fact that creating copies of recorded telephone calls requires access by appropriately authorized personnel to specific infrastructures of the Bank, which was not feasible on a daily basis due to teleworking arrangements.

Additionally, the Bank emphasizes that in the cases of the complaints under consideration, it took all measures provided by its policies to prevent fraud, although this was not always feasible due to factors beyond its control, while stressing that throughout the investigation of the complainants' cases, the Bank kept them informed about their progress and responded to their requests for information concerning them. Furthermore, the Bank states that its compliance with the current legislative framework for the protection of personal data has been a primary concern over time and in this context, it continuously reviews its internal procedures, provides ongoing guidance to its staff for the faster processing of their requests, has strengthened the personnel in the Units responsible for receiving and handling relevant requests, has upgraded its internal systems and applications so that transaction dispute requests can be submitted directly and through the internet and mobile banking application. Finally, it declares that in light of reviewing these cases, it intends to reassess its internal procedures regarding the management of access requests, taking into account developments at the European level (such as the Guidelines 1/2022 of the EDPB) and will initiate targeted updates in its relevant Units.

The Authority, after examining the file's contents and having heard the rapporteur and clarifications from the assistant rapporteur, after thorough discussion

CONSIDERED IN ACCORDANCE WITH THE LAW

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1. From the provisions of Articles 51 and 55 of the General Data Protection Regulation (Regulation (EU) 2016/679 – hereinafter, GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data. Specifically, from the provisions of Articles 57 para. 1 subpara. (f) of the GDPR and 13 para. 1 subpara. (g) of Law 4624/2019, it follows that the Authority has the competence to address the aforementioned complaints regarding violations of the right of access to personal data, while from the provisions of Articles 57 para. 1 subpara. (a) and (h) of the GDPR and 13 para. 1 subpara. (h) of Law 4624/2019, it follows that the Authority also has the competence to investigate ex officio the compliance of the National Bank with the provisions of Articles 24 para. 1, 12, and 15 of the GDPR and to exercise, correspondingly, the powers conferred upon it by the provisions of Articles 58 of the GDPR and 15 of Law 4624/2019.

2. Article 5 para. 1 of the GDPR sets out the principles that must govern a processing operation. According to Article 5 para. 1 (a) of the GDPR, "1. Personal data shall be: (a) processed lawfully, fairly, and in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency'), [...]." Furthermore, according to the principle of accountability explicitly defined in the second paragraph of the same article, the data controller "is responsible for, and must be able to demonstrate compliance with, paragraph 1 ('accountability')." This principle entails the obligation of the data controller to be able to demonstrate compliance with the principles of Article 5 para. 1.

3. According to the provisions of Article 15 para. 1 and 3 of the GDPR: "1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning

them are being processed and, if that is the case, the right of access to the personal data [...]. 3. The data controller shall provide a copy of the personal data undergoing processing. For additional copies that may be requested by the data subject...

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For the data subject, the data controller may impose a reasonable fee for administrative costs. If the data subject submits the request electronically and unless the data subject requests otherwise, the information is provided in a commonly used electronic format. The proper and timely satisfaction of the data subjects' right of access is a critical element for the transparency of processing. As noted in the EDPB Guidelines 1/2022 on the right of access, this right should not be viewed in isolation, as it is closely linked to other provisions of the Regulation, particularly with the principles of data protection, including the lawfulness and fairness of processing, the transparency obligation of the data controller, and with the other rights of the data subject provided for in Chapter 3 of the GDPR. Furthermore, it does not matter for what purpose the data subject exercises the right of access. As the Authority has ruled, the GDPR does not impose conditions for its exercise, which is related to the data subject's ability to be aware of the processing and to verify the lawfulness of the processing (see Recital 63 of the GDPR, Decision of the DPA 1/2022), without being limited to this purpose, as recently confirmed by the CJEU in its ruling (see Judgment C-307/22, §§29-52). Thus, there is no requirement to invoke the reasons for which the data subject wishes to exercise the right of access (see also Decisions of the DPA 36/2021, 2/2020, and 16/2017, para. 3). The same is emphasized in the aforementioned EDPB Guidelines 1/2022 on the right of access (see particularly para. §13: "...the aim of the right of access is not suitable to be analyzed as a precondition for the exercise of the right of access by the controller as part of its assessment of access requests. Thus, controllers should not assess 'why' the data subject is requesting access, but only 'what' the data subject is requesting").

4. Furthermore, according to the WP29 Guidelines on transparency (WP260 rev.01), when informing data subjects in accordance with Articles 13-14 of the GDPR, the information provided should be specific and definitive: "The use of vague qualifiers such as 'may', 'certain', 'often', and 'likely' should also be avoided. When data controllers choose to use vague wording, they must be able, in accordance with the principle of accountability, to demonstrate why the use of such wording could not be avoided and why it does not undermine the lawfulness of the processing" (§ 13). This rule should similarly govern the information provided to data subjects in response to a relevant access request under Article 15 of the GDPR, as it is noted that "The principle of accountability regarding transparency applies not only at the point of collection of personal data but also throughout the entire lifecycle of the processing, regardless of the information provided or the communication made" (§ 29). Regarding the information of data subjects within the framework of Articles 13-14 of the GDPR specifically about the recipients of the data, the following is recommended: "The names of the recipients of personal data or the categories of recipients must be provided. In accordance with the principle of lawfulness, data controllers must provide the most important information regarding the recipients for the data subjects. In practice, this will generally involve the names of the recipients, so that data subjects know precisely who holds their personal data. If...

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The data controllers choose to provide the categories of recipients; the information should be as specific as possible and mention the type of recipient (i.e., with reference to the activities they perform), the sector, the field, the sub-field, and the location of the recipients" (see table on pages 49-50, WP260 rev.01). See also the Guidelines 1/2022 of the EDPB regarding the right of access, §115 and the example mentioned there: "... already under Article 13/14 GDPR, information regarding the recipients or categories of recipients must be as concrete as possible in respect of the principles of transparency and legality. The controller should name the actual recipients unless it would only be possible to indicate the category of recipients. In any case, sometimes it is still not possible to name the actual recipients at the time of providing information under Articles 13 and 14 GDPR, but only at a later stage, for example, when an access request is made."^5 According to the above, in the event that the data subject exercises their right of access regarding the recipients, at a time subsequent to the

initial notification, that is, at a time when their data has already been transmitted to specific recipients, the Data Controller must name those specific recipients⁶, so that the data subject is able, if they wish, to exercise further rights by addressing them.

5. Furthermore, according to Article 12(2) GDPR, "The controller facilitates the exercise of the rights of data subjects provided for in Articles 15 to 22. (...)", while paragraph 3 of the same article sets the deadline for responding to access requests at 30 days, as a rule: "The data controller provides the data subject with information regarding the action taken in response to the request under Articles 15 to 22 without undue delay and in any case within one month of receiving the request. This deadline may be extended by two further months, where necessary, taking into account the complexity of the request and the number of requests. The controller informs the data subject of such an extension within one month of receiving the request, as well as the reasons for the delay. If the data subject submits the request by electronic means, the information is provided, where possible, by electronic means, unless the data subject requests otherwise." According to Recital 59 of the Regulation, "There should be mechanisms in place to facilitate the data subject's exercise of their rights under this Regulation, including mechanisms for requesting and, where appropriate, obtaining free access to personal data and the rectification or erasure thereof, and exercising the right to object. The controller should also provide means for electronic submission of requests, particularly where personal data is processed by electronic means. The controller should be obliged to respond to requests from the data subject without undue delay and at the latest within one month, and to provide justification when not intending to comply with such requests."

6. According to Article 24(1) and (2) of the GDPR, "1. Taking into account the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller implements appropriate technical and organizational measures to ensure and to be able to demonstrate that the processing is performed in accordance with this Regulation. These measures are reviewed and updated when necessary. 2. Where appropriate in relation to the processing activities, the measures referred to in paragraph 1 include the implementation of appropriate...

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"Policies for the protection of data by the data controller." Based on the above, it is clear that the establishment of appropriate procedures and policies is important to ensure the timely and effective handling of requests from data subjects to exercise their rights under the GDPR, particularly by data controllers who systematically process personal data on a large scale for various different purposes due to the nature of their activities. In cases where, due to the nature of the processing, the data subject may suffer harm from the delay in fulfilling their rights, this should be particularly taken into account when drafting the relevant policies and procedures, as expressly mandated by Article 24(1) GDPR. Furthermore, according to Article 25(1) GDPR, "Taking into account the latest developments, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons posed by the processing, the data controller effectively implements, both at the time of determining the means of processing and at the time of processing, appropriate technical and organizational measures, such as pseudonymization, designed to implement data protection principles, such as data minimization, and to integrate the necessary safeguards into the processing in such a way that the requirements of this Regulation are met and the rights of data subjects are protected." At the same time, the effectiveness of the measures taken should be regularly monitored based on feedback received from the affected data subjects, and where deemed appropriate, the relevant procedures and policies of the data controller should be suitably restructured, e.g., through retraining existing staff or hiring additional employees, as required, to ensure that the above objectives of the General Regulation are met for the benefit of the data subjects. As also stated in the aforementioned Guidelines of the EDPB (1/2022), the possibility of extending the response deadline by two months should not be abused. If data controllers often find themselves in a position where they are forced to extend the above deadline, this could indicate that a modification and improvement of their general practices regarding the handling of

requests to exercise rights under the GDPR is required. In no case should the internal policies implemented by the data controller, such as, for example, the teleworking arrangements for its employees, result in undermining the protection of the rights of data subjects.

7. In this case, from the examination of all the elements of the file of the above cases and following the hearing process, the following are established:

In light of the application of the GDPR, in May 2018, the National Bank adopted the Personal Data Management Policy, which was updated in May 2022. This Policy includes a description of the Bank's personal data processing activities, allocation of responsibilities, reference to the Bank's obligations, and staff training. The text of the Policy refers to the principles of the GDPR and to the

7 See also EDPB Guidelines 1/2022 (op. cit.) §42: "Therefore, the controllers should be proactively ready to handle the requests for access to personal data. This means that the controller should be prepared to receive the request, assess it properly (this assessment is the subject of this section of the guidelines) and provide an appropriate reply without undue delay to the requesting person. The way the controllers will prepare themselves for the exercise of access requests should be adequate and proportionate and depend on the nature, scope, context and purposes of processing as well as the risks to the rights and freedoms of natural persons, in accordance with Art. 24 GDPR. Depending on the particular circumstances, the controllers may, for example, be required to implement an appropriate procedure, the implementation of which should guarantee the security of the data without hindering the exercise of the data subject's rights."

8 "Under certain circumstances the controller can extend the time to respond to a request of access by two further months if necessary, taking into account the complexity and number of the requests. It should be emphasised that this possibility is an exemption from the general rule and should not be overused. If controllers often find themselves forced to extend the time limit, it could be an indication of a need to further develop their general procedures to handle requests." (Guidelines 01/2022, §162).

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related obligations of the Bank as Data Controller. Additionally, it issued the internal circular B' 85/24.05.2018 with the subject "Commencement of the implementation of the new framework regarding the protection of Natural Persons against the processing of personal data (General Data Protection Regulation – GDPR)" (Annex 3 of the memorandum), with which it informed its staff about the implementation of the GDPR and provided guidance on the Bank's compliance, including instructions for managing customer requests to exercise their rights arising from the GDPR, and their registration in the special system created for this purpose (GDPR Request Management System). Furthermore, according to the Bank, a mandatory training seminar titled "Protection of the Individual from the Processing of Personal Data" has been designed for its staff, with specific modules addressing issues related to the exercise of rights of data subjects (see relevant screenshots as Annex 6). These documents state "update date: 13/12/2022," while it was not clarified by the Bank whether all or part of its staff attended these seminars and at what time.

During the years 2021-2022 and at the beginning of 2023, several complaints were submitted to the Authority by data subjects against the National Bank for violation of their right to access their personal data. In some cases, where the right was satisfied with a delay but before any intervention by the Authority, the relevant cases were archived as having no subject matter. By decision 36/2021, a fine of 20,000 euros was imposed on the Bank for violation of Article 15 of the GDPR, while in another case, after it was found that the delay was due to measures taken to address the Covid-19 pandemic and the related restrictions on the Bank's operations in 2021, document G/EXE/306/07-02-2023 was sent (see above, p. 12) in which the Authority drew the Bank's attention to the fact that it must comply with its obligations arising from Articles 12(3) and 15 of the GDPR, ensuring the adoption of appropriate organizational and technical measures and reviewing these measures where necessary.

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8. Regarding specifically the seven (7) cases examined together here, the following emerged:

1. A: The data requested by the complainant was partially provided (his contracts) after the service of a lawsuit, while the recorded conversations he requested were provided 7 months after the submission of his request. Special consideration should be given to the existence of judicial litigation between the complainant and the Bank, within the framework of which the Bank used the complainant's personal data, which he had previously requested and had not been provided even after the deadline for submission of a counterclaim had passed, resulting in the complainant being placed in a disadvantageous evidentiary position and suffering procedural harm due to the delay in satisfying the request. In its memorandum, the National Bank did not respond to the complainant's assertion that in this way he was placed in a disadvantageous evidentiary position and suffered procedural harm. Verbally during the hearing, the representatives of the National denied that this delay was intentional on their part, stating that the delay was due to the fact that the request was initially forwarded to the wrong department. Nevertheless, for the protection of the procedural interests of the National Bank, there was the possibility of timely access to the relevant data by the Bank itself in order to utilize it in court. Therefore, a violation of Article 15 of the GDPR in conjunction with Article 12(3) and (4) of the GDPR is established.

2. B: The complainant's right of access was satisfied before the notification of the complaint by the Authority; however, it occurred after a delay of 4.5 months and after a resubmission, in writing, and with an extrajudicial statement after a month from the initial submission of the complainant's request, who claims that due to this delay she suffered moral harm and was delayed in exercising her claims for the...

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Restoration of damages from unauthorized transactions. Furthermore, the teleworking of employees and the increase in requests due to the surge in electronic fraud claimed by the Bank do not constitute grounds for lifting its obligations arising from Article 12 of the GDPR. As has already been pointed out to the Bank in the document referenced in the previous consideration, it is obliged to take the necessary compliance measures with the requirements of the GDPR. Therefore, a violation of Article 12 paragraphs 3 and 4 of the GDPR is established.

3. C: The request was fulfilled 74 days after its submission. A violation of Article 12 paragraphs 3 and 4 of the GDPR is established regarding the notification of the complainant about the reasons for the delay and the need for an extension, as the request was initially "registered as a complaint," which is due to inadequate procedures, technical and organizational measures, and insufficient training of employees that led to the inability to recognize a data subject's request as a request for access.

4. D: The request was partially fulfilled 5 months after its submission (provision of a recorded call), and the Bank cites the teleworking of its employees as the reason for the delay. However, this claim does not constitute grounds for lifting its obligations arising from Article 12 of the GDPR. As has already been pointed out to the Bank in the document referenced in the previous consideration, it is obliged to take the necessary measures to comply with the requirements of the GDPR. Furthermore, in response to the question regarding the exact recipients of the complainant's data, the Bank did not provide clear and specific information but merely stated that "in the context of executing the relevant transfer, it processed only the data necessary for the execution of the transfer" (see consideration 4 above). Therefore, a violation of Article 15 regarding the omission of information about the recipients and Article 12 paragraphs 3 and 4 of the GDPR is established.

5. E: The request was fulfilled 4 months after its submission and 2 months after the complaint was filed, without relevant notification. The Bank cites the teleworking of its employees as the reason, but this claim does not constitute grounds for lifting its obligations arising from Article 12 of the GDPR. As has already been pointed out to the Bank in the document referenced in the previous consideration, it is obliged to take the necessary measures to comply with the requirements of the GDPR. Therefore, a violation of Article 12 paragraphs 3 and 4 of the GDPR is established.

6. F: The request was fulfilled 6 months after its submission, 1 month after the complaint was communicated by the Authority to the Bank, and after the intervention of the Consumer Ombudsman,

without relevant notification to the complainant, beyond the standardized messages that the request is under processing, and without the Bank citing a specific reason for the delay. Therefore, a violation of Article 12 paragraphs 3 and 4 of the GDPR is established.

7. G: The right was partially fulfilled, with a delay (4 months after its submission). Regarding a specific recorded call that was requested, the right was not fulfilled. After submitting a new request specifically regarding this call, although the Bank failed to locate it, it did not inform the complainant accordingly. Instead, it re-recorded the already provided conversation onto another CD, which it delivered to her, without informing her that the CD does not contain the requested personal data. The responses provided as Annex 11-B (dated 24/12/2022) and 11-D (24/01/2023) were sent via email to the address of the unknown perpetrator (...), who had made the relevant change through the complainant's e-banking settings. The Bank did not provide any explanation regarding the lack of notification to the complainant about the fact that a specific requested call (from 3/12/2022) had not been located. Therefore, a violation of Articles 15 and 12 paragraphs 3 and 4 of the GDPR is established.

Furthermore, although the Bank claims that "throughout the investigation of the complainants' cases, it informed them about the progress of their requests," it has not been established that it specifically provided the information required by Article 12 paragraph 4 of the GDPR to the complainants, but it is established that it merely sent a standardized message stating that the request is under processing.

Consequently, the Authority finds a violation by the National Bank, as the data controller, of Article 12 paragraphs 3 and 4 of the GDPR in conjunction with Articles 15 of the GDPR regarding cases 1, 4, and 7, as previously stated.

9. Furthermore, based on the above, it appears that the procedures maintained by the Bank for handling access requests were ineffective: In 3 of the examined cases, the Bank cited the teleworking arrangements of its employees, due to which access to the infrastructures where the records of recorded conversations are kept was not feasible. In some cases, the Bank stated that the requests were not properly and timely forwarded to the appropriate departments, as they were submitted in the context of transaction dispute incidents, while it also cited the significant increase in related requests in recent times.

Moreover, according to the memorandum of the National Bank, in December 2023, the procedure "Management of Requests for Exercising GDPR Rights" was established (Annex 4). This procedure appears to have been established after the submission of the complaints examined here and after the Authority sent again in November 2023 the document G/EXE/294/06-02-2023 for the ex officio audit of its procedures.

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Furthermore, although the Bank emphasizes the theoretically very important role of the Data Protection Officer (DPO) in monitoring compliance and highlighting relevant issues, it has not been established that the DPO has made specific proposals or recommendations for handling the cases under examination, nor has there been any contribution from the DPO in the context of documenting procedures and updating the Bank's policies.

The fact that, despite the existence of the above complaints and the finding that in all these cases the deadlines of the GDPR were not met, the Bank only mobilized to document the relevant procedures after receiving two documents from the Authority that drew its attention to the issue and called on it to demonstrate its compliance with Articles 12(2) and 24(1) and (2) of the GDPR, indicates that from the implementation of the GDPR until the date of examination of the case during the Authority's meeting, the Bank had not complied with these requirements, in an unacceptable manner given the volume and nature of the personal data it processes, the multiple access requests it is expected to receive due to its field of activity, and the potential risks from delays in satisfying the right of access, which are very likely to result in economic consequences for the data subjects (inability to prove in the context of disputing fraudulent transactions, inability to investigate fraud, etc.). Furthermore, the Bank does not appear to have identified specific causes for its non-compliance, but in its memorandum dated 12/4/2024, it vaguely refers to a future re-examination of its procedures: for example, it states that it

has strengthened the Units responsible for receiving and handling relevant requests with personnel, without specifying where the erroneous handling in the above cases originated, whether, for instance, the cause was a lack of sufficient staff or a lack of understanding by the existing personnel or some other reason. Additionally, it states that "in light of the review of these cases, it intends to re-examine its internal procedures regarding the management of access requests, taking into account developments at the European level (such as the Guidelines 1/2022 of the EDPB) and will initiate targeted training for its relevant Units." However, the fact that as the data controller, the Bank began to receive an unusually large number of access requests is a factor that should have been taken into account when designing and updating the relevant procedures by the Bank already from the time this increase was observed, ensuring it responded to this new situation, considering also the working conditions of its employees. Specifically, in the context of ongoing compliance with the GDPR, the Bank should have already assessed its weaknesses, initially when the ("exponential," as it states) increase in access requests was observed as a consequence of the surge in electronic fraud, subsequently when customer complaints intensified, and in any case when the Authority conducted a spontaneous audit of its procedures from the year 2023. On the contrary, the factual circumstances indicate that the Bank's Policies are theoretically documents that are not implemented in practice, despite its assurances to the contrary.

Given the above, in the context of the spontaneous audit of the procedures of the complained Bank, a violation of Article 12(2) of the GDPR in conjunction with Article 25(1) of the GDPR is established.

10. Based on the above, the Authority considers that there is a case to exercise its corrective powers under Article 58(2) of the GDPR in relation to the identified violations.

i. Regarding the complaint mentioned in point 1 of paragraph 8 of this decision, the Authority considers that, based on the circumstances established, an effective, proportionate, and deterrent administrative monetary fine should be imposed in accordance with the provision of Article 58(2)(h) of the GDPR, as referred to in the operative part of this decision. In determining the amount of the fine, the criteria set out in Article 83(2) of the GDPR were taken into account, as well as paragraph 5(b) of the same article, which has...

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application in the case and in particular, the fact that while the complainant had not been granted the requested personal data (recorded telephone calls), they were used by the Bank in the context of their dispute.

ii. Regarding the complaints mentioned in points 2-7 of paragraph 8 of this document, the Authority considers that, concerning the established violations of the GDPR, it is appropriate to issue a reprimand to the National Bank, in accordance with Article 58(2)(b) of the GDPR and not an administrative fine, given that the factual incidents of these cases are evaluated independently below regarding the overall compliance of the Bank with the obligations arising from Articles 12 and 15 of the GDPR, within the framework of a distinct audit case.

iii. Regarding the established violation of Article 12(2) of the GDPR in conjunction with Article 25(1) of the GDPR, the Authority considers that, based on the circumstances established, an effective, proportionate, and deterrent administrative monetary fine should be imposed, in accordance with the provision of Article 58(2)(h) of the GDPR, pursuant to Article 83 of the GDPR. For the assessment of the fine, the Authority took into account the criteria set out in Article 83(2) of the GDPR, paragraphs 4(a) and 5(b) of the same article applicable to the present case, the Guidelines for the application and determination of administrative fines for the purposes of Regulation 2016/679 issued on 03-10-2017 by the Article 29 Working Party (WP 253), and the Guidelines 04/2022 of the European Data Protection Board for the calculation of administrative fines within the framework of the General Regulation, as well as the factual data of the examined case, particularly the criteria and specific circumstances outlined below:

- The large number of affected subjects, namely potentially the entire customer base of the Bank, as well as third-party natural persons.
- The long duration of the violation, as it is established that it concerns the period from the

implementation of the GDPR (25/5/2018).

- The fact that the violation concerns the main activities of the data controller.
- The fact that the Bank has previously been sanctioned for a violation of the right of access.
- The Bank's indifference to the proper and timely satisfaction of access rights for a long period, citing the current conditions due to the pandemic, and that it only proceeded to develop relevant policies after the Authority's audit, while mentioning a future review of its procedures.
- That the turnover (gross revenue) of the Bank for the last financial year (2023) amounted to approximately €2.6 billion.

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FOR THESE REASONS

THE AUTHORITY

A. Imposes on the National Bank of Greece S.A., as the data controller, based on Article 58(2)(h) of the GDPR, an administrative fine of twenty thousand (€20,000) euros, for the established violation of the right of access of complainant A under Article 15(1) and (3) of the GDPR, according to what is stated in point i. of paragraph 10 above.

B. Issues a reprimand to the National Bank of Greece S.A., as the data controller, based on Article 58(2)(b) of the GDPR, for the established violations of Articles 12(3) and (4) of the GDPR in conjunction with Article 15 of the GDPR, in the cases of the complaints mentioned in point ii. of paragraph 10 above.

C. Imposes on the National Bank of Greece S.A., as the data controller, based on Article 58(2)(h) of the GDPR, an administrative fine of two hundred thousand (€200,000) euros, for the established violation of Articles 12(2) and 25(1) of the GDPR, according to what is stated in point iii. of paragraph 10 above.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou